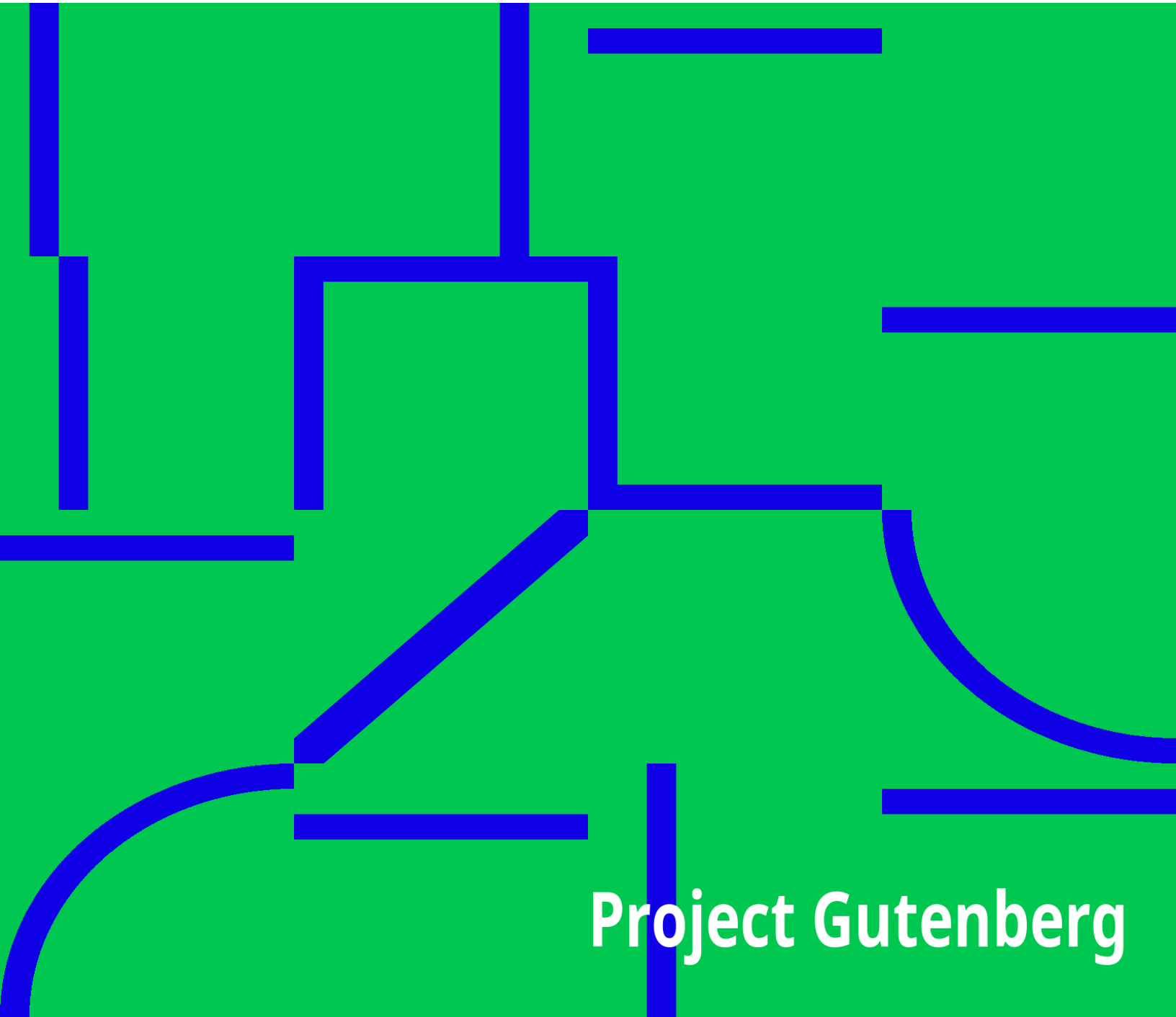


The Golden Judge

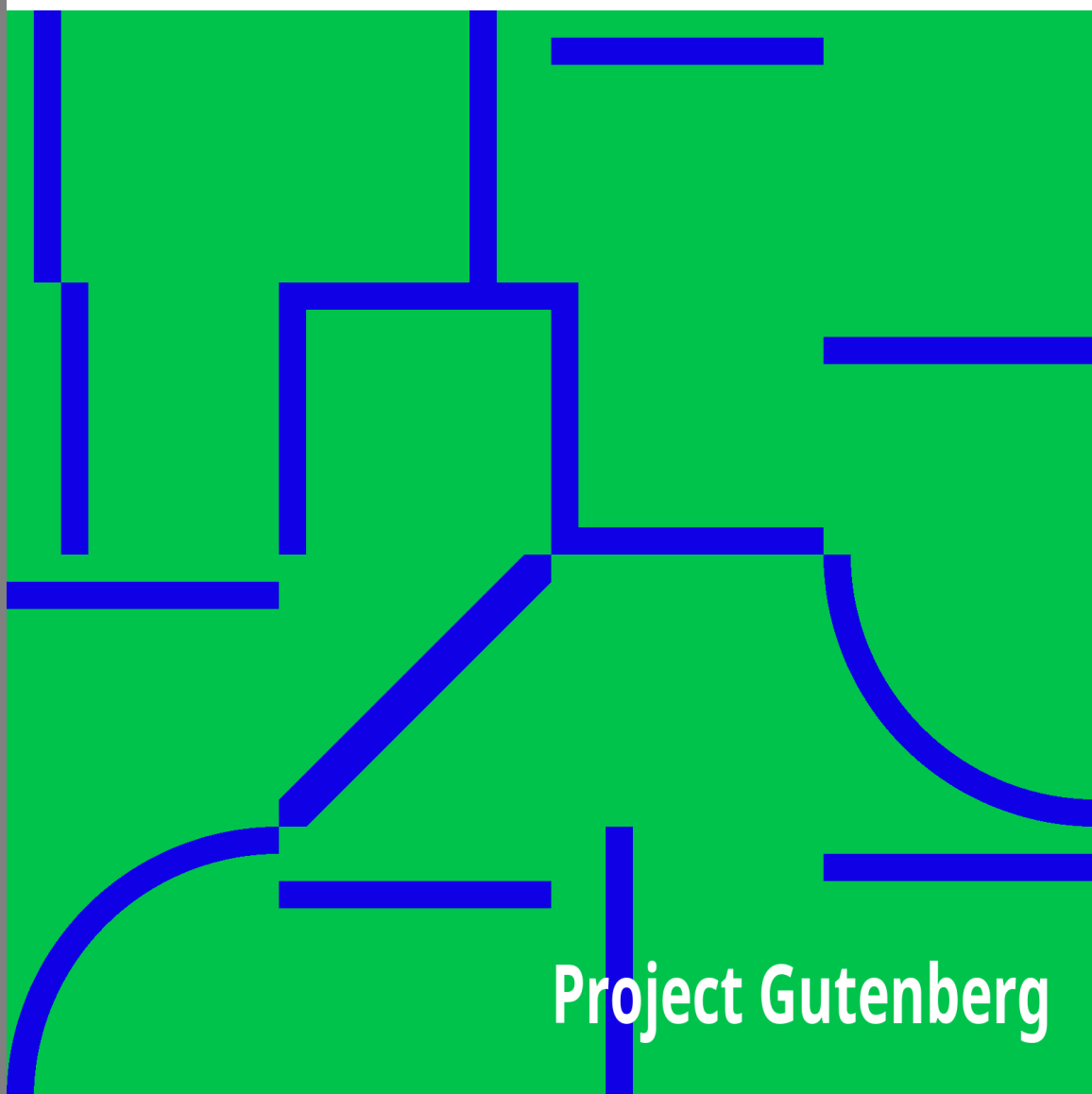
Nathaniel Gordon



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THE GOLDEN JUDGE

*A suggestion and a highly
intriguing one--on how to
settle the problems that involve
face-saving among nations!*

BY NATHANIEL
GORDON

Illustrated by Freas

UNITED NATIONS, N.Y., June 16, 1981—(AP)—In one of the most impressive ceremonies ever held in the United Nations building, the world celebrated today the 25th anniversary of the discovery of the "Golden Judge."

General Terence P. O'Reilly, USA (Retired), the man responsible for the discovery, was the principal guest of honor. Obviously moved by the acclaim from virtually every member nation, Gen. O'Reilly made a brief

speech recapturing for a moment the accidental circumstances of 25 years ago that so drastically reduced world tensions....

It was stifling hot in Jerusalem in the afternoon of June 16, 1956, and Major General Terence Patrick O'Reilly, United States Army, was rather more bored than usual. His Army career had gone well—two stars already at forty-five—until the mysterious workings of the Pentagon had given him perhaps the most frustrating posting a soldier could have.

He was chairman of the mixed United Nations armistice commission trying to keep the uneasy peace between Israel and her Arab neighbors. For months he had presided over unending investigations of border incidents, some petty, some not so petty. He had signed reports reprimanding and recommending and approving, but nothing ever came of them, and he no longer expected anything ever would.

Today's hearing was different, and not strictly in his field. But because he was an engineer, and because both Arabs and Israelis trusted him, he had agreed to listen to their opposing arguments on using the waters of the River Jordan.

Too many years ago, the United States had offered to provide most of the funds for a "little TVA" on the river, benefitting both Israel and Jordan alike. At first, both had refused outright to have anything to do with the other. But over the years, skillful negotiating by Eric Johnston, the American President's personal envoy, had brought Israel and Jordan closer and closer together—until now they agreed on the disposal of ninety per cent of the water.

But farther than this they would not go. For months, years, they balked on the remaining ten per cent, and the dams remained only blueprints.

Terence O'Reilly was sick unto death of the arguments, and thought everyone else was, too. He had heard them over and over; he knew them by heart. He knew they were evenly balanced, with justice on both sides. He knew both nations longed for a settlement, but he knew neither would back

down, for reasons of "face." Worst of all, he knew that any decision of his was meaningless. It was purely advisory, and he knew all too well what "advisory" opinions counted for out here.

Yet he tried to look interested as the delegate from Jordan wearily produced an argument that every man in the conference room could recite word for word.

In a brief lull, General O'Reilly groaned: "Why don't they toss a coin for it?"

It was not as *sotto voce* as he meant.

The Arab delegate stared at him. "I beg your pardon!"

Flushing, General O'Reilly apologized, but the Arab was already talking excitedly to his fellow delegates. Puzzled, O'Reilly heard a confused babble of Arabic, then sudden silence.

The Arab delegate had a glint in his eye as he asked for the floor.

"In the name of my country," he said proudly, "we agree!"

The word "agree" had not been heard in this chamber for many months, and General O'Reilly wondered if he had heard aright. "Agree?" he stared. "Agree to what?"

"To toss a coin for it, as the chairman has proposed," the Arab said. "That is, it the Israeli delegation has the courage, the sportsmanship to agree." He looked tauntingly to his rivals across the room.

The Israeli leader sprang to his feet, indignant. "I protest, Mr. Chairman, to this frivolous treatment of a serious matter, which will affect the future of ____"

He felt silent, aware of the contemptuous smiles on the faces of the Arabs.

General O'Reilly kept his countenance. He said mildly: "Of course, if you are not willing to risk the luck of—"

"We are afraid of nothing, sir!" the Israeli snapped. "We are as sporting as anyone else, but—" One of his fellow delegates whispered something to

him. Then the whole Israeli delegation talked in low voices. Finally the leader rose again. "Will you permit me to telephone my minister?"

Gravely the general recessed the meeting for thirty minutes. In his own room, he stared at himself in the mirror, still dazed.

"My God!" he breathed. "They can't be taking it seriously!"

But why not? If the arguments were so evenly balanced that not even Solomon could have chosen, if they really wanted a settlement, if they could never give in without losing "face"—why, what better method than to trust it to the fall of a coin? Still—things just didn't happen that way.

When the thirty minute recess ended, the Israeli delegate arose. He glared across the room and announced defiantly: "My government also agrees! Let the coin decide!"

The conference broke into clamor, but General O'Reilly had long since learned the value of prudence in Jerusalem. "The chairman agrees," he said judicially, "that in the circumstances, this is perhaps an excellent solution, perhaps the only solution. But this has been, to say the least, somewhat impulsive. Let me suggest both sides return to their governments and consider this well. Then, if you are both still willing, let us meet here one week from today, in this room—and the coin will decide!"

He had expected second thoughts, and he was not disappointed. Extremists on both sides of the Jordan screamed with indignation. Yet, oddly, most people seemed strangely excited, even pleased by the sporting proposition. They began to lay bets on the outcome.

And both governments held firm. Probably, the general speculated, because they both wanted a solution—and there was no other solution in sight. Also, each hated to be the first to back down from a fair bet. It became a matter of honor.

On the week end, General O'Reilly flew to Cairo to meet some friends passing through on a world tour. Like all tourists, they went to the Mouski,

Cairo's great bazaar, and it was there, in the Street of the Goldsmiths, that the general got his idea.

It cost him a chunk of money, out of his own pocket, but like most Irishmen, he was a sporting man himself. After all, he grinned to himself, I started the whole business, and I might as well do it up in style.

He had decided that no ordinary coin would do for such an historic occasion. So he had a goldsmith make him a heavy solid-gold medallion almost twice as big as a twenty-dollar gold piece. He was not very much pleased with the design he sketched out hastily, but on the spur of the moment, he could think of nothing better.

The "Heads" side of the great coin bore a *front* view of the blind goddess of justice, with her scales. The "Tails" side had a *rear* view of the same lady.

It was rather crudely done, but time was short. "It'll have to do," the general chuckled, as the plane bore him back to Jerusalem.

When the appointed day came, the United Nations conference room in Jerusalem was jammed with Israeli and Arab officials, and with a pack of correspondents who had magically appeared.

General O'Reilly had decided against asking each side to put its agreement into writing. A true gentleman's agreement shouldn't be written, he concluded. He merely asked the leaders for each side if they agreed to abide by the fall of the coin. Solemnly, both assented.

Courteously, the Israelis had allowed the Arabs to call while the coin was still in the air. There was silence as General O'Reilly flipped it high up towards the ceiling.

"Tails!" cried the Arab leader.

The spinning coin glittered, falling onto the green baize table. The general looked at it. The goddess had her back turned.

"It is tails," he announced, and the Arab delegation broke into happy shouts.

And, astonishingly, that was that. The leading Tel-Aviv newspaper summed up Israeli feeling when it wrote in an editorial: "Certainly there were many heavy hearts in our country when the coin fell against us. But let us show the world that we are true sportsmen. We risked, and we lost. Let this be the end of it."

Work began on the dams at last, without interference or protest. Not a word was ever written on paper, but it was the only agreement between the two countries that was scrupulously kept by both sides.

It was, of course, a wonderful story. The name of Terence O'Reilly swam suddenly into the headlines, and his wife began keeping a scrapbook of all the clippings. One among them was destined to be more potent in world affairs than all the rest. It was a "profile" of General O'Reilly published in a great American magazine, and it was notable for two things.

To begin with, it was the author of this profile who first gave the coin the name by which it soon became so famous—the "Golden Judge."

But it also contained a casual, seemingly insignificant remark by General O'Reilly. When the interviewer had asked how he happened to think of the coin-tossing idea, the general had grinned. "Why not?" he said. "Aren't the Irish the gamblingest people on earth?"

And it was this innocent sentence, hardly noticed at the time, that started the "Golden Judge" on its fantastic career, and kept it from being a mere nine-day wonder.

For a Chinese Communist diplomat in Berne, Switzerland, happened to see it and, one night at a dinner party, he said mockingly: "This stupid American general in Jerusalem is obviously ignorant of the world. Otherwise, he would realize that no nation on earth loves gambling so much as the Chinese. Anyone who knows the Orient will tell you this."

This made good cocktail party talk, a thing desperately needed in Berne, and eventually reached the ears of an Associated Press correspondent. He filed a paragraph on it for a box story and, in the inevitable way of the press, a reporter in Jerusalem asked General O'Reilly for his comment.

"Well," he said, "I've heard the Chinese are great gamblers indeed, although whether more so than the Irish I beg leave to doubt."

Then his eyes twinkled. "Why don't they prove it? Why don't they toss a coin, say, for Quemoy and Matsu? The danged little places aren't worth a nickel to either side, and well they both know it. But they'll neither of them back down a hair, for losing face. I say, if they think they're the greatest gamblers on earth, let 'em prove it!"

This sped into print, caused a world-wide stir, and brought General O'Reilly a sizzling reprimand from the Department of the Army. He was not REPEAT NOT to express opinions about the value of allied territory.

He read the reprimand ruefully, reminded himself that another great Irish failing was too much talk—and said good-bye to any hopes for a third star.

But this was before the black headlines from Formosa. With popping eyes, General O'Reilly read that the Chinese Nationalist Foreign Minister had taken up the challenge. He offered to toss a coin with the Chinese Communists for Quemoy and Matsu!

"I'll be jiggered!" the general breathed. "They'll fight about everything else, but be damned if they'll admit the Irish are bigger gamblers than the Chinese! Now let's see what the Commies say."

Peking was silent for two weeks. Then, in a broadcast from Radio Peking, Chou En-Lai made his reply.

He agreed—but with conditions. He insisted on a neutral commission to supervise the toss, half Communist members, half non-Communist. World observers, weary of neutral commissions that never achieved anything, interpreted this as a delaying tactic and agreed the whole thing would fall through.

"This is further proof," the Nationalist Foreign Minister commented with icy scorn, "that the Communists are no longer real Chinese. For any Chinese worthy of the name would not be afraid to risk the fall of the coin."

But Marx had not quite liquidated the gambling fever that runs strong in the blood of any Chinese, be he ever so Communist.

Stung, Chou En-Lai retorted: "We agree! Let the coin decide!"

It was agreed that Prime Minister Nehru of India, as a neutral, should supervise the matter, and that New Delhi would be the scene of the actual tossing. And Nehru thought it fitting to invite General O'Reilly, as the father of the whole thing, to bring the same "Golden Judge" to India, to be used again.

The general came gladly, but declined to make the toss himself. "My country is too closely involved in this matter," he explained, "and there might be talk if an American made the toss."

He suggested Nehru himself do it, and the Prime Minister agreed.

The actual tossing was done in the great governmental palace, and Communist China won. Chiang Kai Shek's delegate bowed impassively and said coolly that his government yielded without question to the goddess of chance.

That night the Indian Prime Minister was host to a glittering official banquet to celebrate the ending of the "offshore island" crisis.

"And we must lift our glasses," he said eloquently after dinner, "to the man who discovered this eminently sane method of settling quarrels—a method so sensible, so fair that it is difficult to believe that in all the world's long search for peace, it has not been discovered before. I give you General O'Reilly!"

The general rose to loud applause. He expressed his thanks modestly, and disclaimed any merit except that of pure luck. Then he held up the "Golden Judge" itself, with a gleam in his eye.

"I hope," he said, "that this coin will have still more work to do. Surely there are still disputed places in the world, where justice lies on both sides, where only 'face-saving' prevents a settlement. And surely it is better to resort to this coin than to force and war and bitter arguments that drag on year after year."

"Hear! Hear!" Nehru cried, leading the applause. General O'Reilly stood smiling until it died away.

"Places like Kashmir," he said clearly.

There was a gasp of laughter, quickly hushed. Nehru's face was pale with anger; he was famous for his temper. And everyone knew how India and Pakistan had quarreled for years over Kashmir, and that all the efforts of the United Nations had come to nothing so far.

"I was delighted to hear Prime Minister Nehru say," General O'Reilly went on calmly, "how much he approved this method of settling old disputes. And I should be very glad to help—with this." Smiling, he tossed the Golden Judge in the air and caught it again.

Nehru could keep silent no longer. Like a skilled Oriental debater, he struck back indirectly. "We thank General O'Reilly," he said acidly, "for his kind offer, but perhaps it should be first used by his own people, the Irish, of whose gambling prowess he is so proud. Surely no bitterness has lasted longer than that between the Republic of Ireland and the 'Six Lost Counties' of Northern Ireland. Let the Irish use the Golden Judge themselves before they counsel it for others!"

But General O'Reilly was unruffled. "I'm an American, myself," he said, smiling, "although proud indeed of my Irish blood. And the *Irish* Irish will have to speak for themselves, although I venture to say you'll find them a sporting people indeed. But that's not quite the point, is it? 'Twas you yourself, sir, who praised the Golden Judge so highly. And you've seen today what fine sportsmen the Chinese are. The point is, are the *Indians* a sporting people?"

"Of course we're a sporting people!" Nehru glared.

"Then I take it you'd be willing, assuming Pakistan agrees, of course, but I'm told they're a *very* sporting people, to—" The general tossed the coin again, absent-mindedly.

"All right!" Nehru grated. "If they agree, so do we!"

It took a month before Pakistan could agree, and all the arrangements be made for the Toss on Kashmir. But in that month, the world had other things to think about. Chiang Kai Shek accepted his gambling loss without a murmur and removed his troops from Quemoy and Matsu, the American Seventh Fleet helping, the Communists not interfering. All civilians on the islands who wished to go to Formosa were taken there.

Washington said little officially, but in the corridors of the Pentagon, Congress and the White House, the sighs of relief reached gale force. General O'Reilly received a confidential and personal message from the Army Chief of Staff that made him pink with pleasure.

"May get that third star after all," he told his wife that night. "And not too long to wait, maybe."

But, above all, the month was filled with clamor from Ireland. Her Majesty's Government in Whitehall had immediately issued a communiqué which took a glacial view of the "puerile" proposal to toss for Northern Ireland. It was the timing of this communiqué, rather than its contents, that proved a tactical error. It had come too quickly, and Irishmen, both north and south, resented it.

As a Belfast newspaper wrote tartly: "Irishmen on both sides of the line are quite able to decide such matters for themselves, without the motherly interference of London."

Dublin agreed in principle to toss, but the wrangling over conditions and exceptions boiled up into the greatest inter-Irish quarreling of twenty years. It was still raging when General O'Reilly flew into the Vale of Kashmir with a broad smile and the Golden Judge.

Again the great coin glittered high in the air while none other than Nehru himself called out, tensely: "Heads!"

It fell "Tails."

"So be it!" Nehru said calmly, shaking hands with the Governor-General of Pakistan.

"Well, general," Nehru said, turning to O'Reilly with a smile, "are you satisfied now? I think we've proved we're a sporting people. So have the Chinese, and the Jews and the Arabs. But what about your own folk, the Irish? From what I read, their sporting qualities seem to be highly overrated. I'd say they'd never gamble but on a sure thing."

The general's face went red at the insult, and so, a day later, did the collective face of all Irishmen, North and South. For a while there was aghast silence from the Emerald Isle, a silence sullen and embarrassed. And then a great rumbling roar of indignation.

"Mr. Speaker!" cried a member of the Dail in Dublin. "Are the Irish people, who honor great gamblers only a little less than great poets, to be outdone by dark-skinned heathen? Mr. Speaker, I say *no!*"

The following morning, the government of Eire formally offered to toss for the Six Lost Counties and, if the coin fell contrary, to say no more about them forever. Belfast agreed that same afternoon, and the whole island went wild with excitement. Hardly any Irishman failed to place some kind of side bet on the outcome, and stakes were laid that day that would be spoken of with prideful awe for generations to come.

The remark of a Limerick drayman was widely quoted. "There's not a man of us here," he commented in the course of a game of darts at the Sword and Shamrock, "but would toss a coin for his grandmother's head, and well ye know it. So after all the blatherin' and yowrin', why not have a go for the Six Counties, and let the coin decide it now and foriver, once and for all, win or lose?"

The British Government surrendered with grace, and offered to play host to the toss in London, as a neutral place. They soon learned, with burning ears, that the last place on earth any Irishman considered neutral was London.

As a matter of course, General O'Reilly was invited to preside, using the Golden Judge. Like most Irishmen in America, he had long sung of and sighed for the Auld Sod, while carefully avoiding going there, even for a visit.

He now realized his error. He was received as one of Ireland's most glorious sons. He was set upon by thousands, perhaps hundreds of thousands, of

proud O'Reillys—there were O'Reillys from the bogs and O'Reillys from the great houses, O'Reillys in tophats and O'Reillys in tam o' shanter. He was assured, and came near believing it, that in both looks and wisdom, he was the spitting image of the Great O'Reilly, one of the many last rightful Kings of Ireland. A minstrel composed a lay about him, "The Golden Judge of Ireland"; he was smothered in shamrock, and could have swum in the gifts of potheen. Secretly he much preferred Scotch whisky to Irish, but the swarming O'Reillys made the disposal of the potheen no very great problem.

The actual toss took place in a small railroad station, hastily cleaned up, on the railway line between Dublin and Belfast. Impartial surveyors had certified it as being exactly astraddle the frontier.

Amid a deathlike hush, with a high sense of history in his heart, General O'Reilly flipped the Golden Judge high in the air.

Eire won. The Six Counties were no longer lost, and there was little enough work done in Ireland for a fortnight. Eire instantly and magnanimously granted to her new north all the points that had been fought over so bitterly for so many years. For the northerners, to their surprise, life went on exactly as before, except for different postage stamps, and a changed heading on their income-tax returns, which were considerably lower. For the first time in many years, there were no brick-bats thrown if a man felt the need, on a summer night, to sing "God Save the Queen."

General O'Reilly flew away from Ireland with a mist in his eyes and a great glow in his heart. In a shaven second, he had achieved the thing for which long and gallant generations of earlier O'Reillys had fought bloodily and in vain. For a fleeting moment, he wondered if his nervous right hand that day had shown any subconscious partisanship, but rejected the thing as impossible. If the toss for the Six Counties was, in a way, the crowning peak of General O'Reilly's career, it was by no means the end of it. Both he and his coin were fast becoming settled tradition. He continued his normal

military career, but with the tacit understanding he would have a few days' leave of absence whenever the Golden Judge was needed.

He took it to Stockholm for the toss that settled the old and bitter fishing controversy between Britain and Iceland. Britain won.

He took it to Cairo, where Britain and Greece tossed for Cyprus. Greece won, and at once offered Britain all the bases she wanted there, and granted special extraterritorial status to all British colonels, knights' widows and former governors of the Punjab living in retirement on the island.

He got his third star just before he flew down to Rio de Janeiro for the toss that finally settled the nagging quarrel between Britain and Argentina as to who owned the Falkland Islands. Britain won.

He took it to The Hague in Holland for the toss about the Saar. The Saar had remained a European sore point despite a series of Franco-German "settlements" which never seemed to settle anything. Germany won the toss, and immediately, of her own free will, granted the French equal commercial rights.

The Saar toss had two odd results. The first was purely personal for General O'Reilly, but he never forgot it. One day, driving through The Hague, his official car passed a huge dignified building, which his chauffeur explained was the World Court. With a strange feeling, the general noticed a solemn old man in black, staring bleakly out the window. He realized suddenly it was probably a judge, and that the golden coin in his pocket had turned this costly mechanism into an anachronism. Nobody used the World Court any more now.

The other result of the Saar toss was, from the viewpoint of world jurisprudence, far more important. It transformed the Golden Judge from a mere tradition into an established legal institution, in this manner:

France and Germany had been unable to agree whether the Saar was really *tossable*—a term that soon entered dictionaries—and had appealed to the United Nations to decide. A temporary or *ad hoc* United Nations commission had been named to settle this point and, after due deliberation, had pronounced the Saar tossable.

Technically, this "Saar Commission" should have then dissolved itself. Instead, in the way of parliamentary institutions, it lingered on and soon became the accepted body to decide on tossability. And, illogically, it was forever afterwards still called the "Saar Commission."

Whenever, anywhere in the world, some international dispute reached stalemate, it became commonplace for some delegate to rise and say: "Mr. Chairman, I move the question be referred to the Saar Commission."

In due course, the Saar Commission would then give its solemn judgment as to whether or not the dispute should be put to the arbitrament of the Golden Judge. If so, General O'Reilly would board a plane, and be off.

Once the Saar Commission had its say, no nation ever dared refuse to put a dispute to the hazard of the coin. Whereas nations yawned at being called "warmongers" or "imperialists" or "aggressors" or "international bandits," none could stand being called "bad sportsmen" or "poor losers." So many nations had accepted the verdict of the Golden Judge, that it became increasingly more difficult, not to say impossible, for a given nation to admit it was less sporting than the others.

However, not all disputes were held tossable, to the disappointment of some people who had too quickly believed the Golden Judge would bring immediate Utopia, the end of all quarreling forever. Gradually the Saar Commission evolved certain criteria:

1. A dispute was not tossable if it might give great populations and great nations over into systems of government they abhorred; it was tossable only if the population involved had no very great bias one way or the other.
2. A tossable dispute was one in which justice lay on both sides, evenly balanced.
3. Tossing was clearly indicated where both sides ardently wished a settlement, but where neither side was willing to cede an inch, for fear of losing "face."

Thus the Saar Commission pronounced untossable the proposal by the Soviet Union to have the Golden Judge decide whether or not America should abandon all her overseas bases. It also turned down the suggestion of an American senator that Russia and the United States should toss for Soviet withdrawal from all Eastern Europe. It denied the appeal of an idealistic Dane who wanted a toss to decide whether Germany should be all Communist or all-Western. It likewise rejected a Swiss proposal that Chiang Kai Shek and Chou En-Lai should toss again, this time for Formosa itself.

In passing, it is of interest to note that only once did Soviet Russia agree to toss. It was in the matter of her old dispute with Persia over caviar fishing rights in the Caspian Sea. Persia won but, to the consternation of the world, Russia refused to abide by the outcome. It was the first and only time that the decision of the Golden Judge was not obeyed, and it had startling repercussions.

All over the world, fellow-travelers abandoned the Soviet cause. They had been able to find some excuses, however tortuous, for Russian purges, forced confessions, concentration camps and aggressions, but they turned away, shocked and saddened, from a nation that openly welshed on a bet.

There were strong reactions within Russia itself, although the convulsions were largely screened from Western eyes. However, an unprecedented number of Russians fled across the Iron Curtain, seeking asylum in the West. They said gloomily they could no longer support a regime that reneged on its fair gambling losses, and protested fiercely this was not the true soul of Russia.

In a gallant effort to recoup face for Russian sportsmanship, many of these refugees grimly began playing almost non-stop games of "Russian roulette," which gives the player a five-to-one chance of living. Some extreme chauvinists proudly reduced the odds to three-to-one by inserting two bullets, and a former Red Army major named Tolbunin even used three. His *tour de force* was widely admired, although not repeated, and Tolbunin himself was given a magnificent funeral.

Yet, except for the Caspian caviar toss, the Golden Judge was obeyed as unquestioningly as the Voice from Sinai, and perhaps more so. And if it

could be used only in what some called "minor" disputes, it was surprising to see, once these were settled, how really few "major" ones remained. It is impossible here, of course, to list more than a few of General O'Reilly's tosses, but he flew to nearly every spot on earth, a beloved world figure.

He flew to Ethiopia—and caught malaria there—to settle an old quarrel between that country and the Sudan over a one-square-mile Sudanese enclave named Gambela, well inside Ethiopia. A relic of the times when Britain controlled the Sudan, Gambela had long been a thorn in the side of the Conquering Lion of Judah. Although the Negus lost, he accepted the verdict as uncomplainingly as earlier disputants, some three thousand years before, had once accepted the awards of his putative ancestor, King Solomon.

General O'Reilly ended a tiny but poisonous quarrel of many years' standing as to whether British Honduras should become a part of the Republic of Honduras. Britain won.

In an epic tour in 1973 that left the world gasping with admiration, General O'Reilly spread lasting balm on many sores in the Middle East. The Golden Judge settled—in favor of Pakistan—her friction with Afghanistan over the long-disputed Pathan territory. Saudi Arabia won from Britain two small and completely worthless oases on the undefined border between Saudi Arabia and Trucial Oman. These oases had, over the years, produced many hot and vain notes, and desultory shooting, but the Lord of Saudi Arabia was subsequently much disappointed that they never produced oil. He was further dismayed when the Golden Judge awarded to Iraq a "neutral zone" between the two countries, on which they had never been able to agree, and this zone did, in fact, produce tremendous amounts of oil. However, he complained only to Allah.

Syria and Turkey resorted to the toss to decide about the Sanjak of Alexandretta (Iskanderun) which Turkey had been given by France back in the Thirties, when France ran Syria. Turkey won. Damascus sighed but

smiled, and reopened diplomatic relations with Ankara that had been severed for more than twenty years.

But on a golden January day in 1975, in Malaga, Spain, General O'Reilly's aide-de-camp noticed that his chief seemed strangely preoccupied. The occasion was a toss between Sweden and Finland as to the possession of four large rocks lying in the sea at the head of the Gulf of Bothnia, just off the Finno-Swedish frontier. These rocks, just south of the Arctic circle, contained no population other than sea gulls, but had been warmly claimed by both nations for years. And since the weather in Scandinavia in January is miserable, the Finns and Swedes had sagely decided to hold the toss in Malaga, which was as far south as they could go and still be in Europe.

In public, General O'Reilly was himself—charming, dependable, cheerful. He carried out the toss as gracefully as he had all the others, and he made a winning speech at the banquet given by the Finns that night to celebrate their acquisition of the four sub-Arctic rocks.

But the A.D.C. was not deluded and later, on the flight back to Washington, he observed that General O'Reilly was unusually abstracted and pensive, lost in thought. But since a major does not ask a lieutenant general about such matters, he kept silent.

The fact was that the general had now reached sixty-five, and in the American Army, sixty-five is retirement age. As the ocean fled away under the racing plane, he was remembering a scene the week before in the office of the Army Chief of Staff.

"It's up to you, Terry," the Chief of Staff had said. "You know perfectly well that the President is willing, even eager, to keep you on past the retirement age. You're a big man in the world now. You can stay on the active list as long as you want. If necessary, he'll ask a special law, and there won't be one vote against it."

Then the general remembered his wife: "You've done enough, darling. It's time we had a real permanent home for once in our lives. That garden for me, those Aberdeen Angus for you—remember? You've traveled too much; you've never really gotten over that malaria. Darling, you need a rest. You've earned it."

The general gazed out the plane window, trying to make up his mind. Then suddenly he chuckled. The A.D.C. saw him pull a leather case out of his pocket and watched, puzzled, as a golden coin spun briefly in the air.

The general caught it on the back of his left hand, covering it with his right. Then he removed the right, looked at it.

He chuckled again.

When General O'Reilly retired the following week, the President asked Congress for a fourth star for him and, in a special message, listed in glowing terms the services he had rendered to America and the world. The bill passed without a murmur, and Terence Patrick O'Reilly became at last a full general.

Messages poured in from nearly every country in the world, from dozens of presidents and premiers, and the handful of remaining kings. Along with them came hundreds of gifts. They included a carved elephant tusk from Nepal, a Royal Copenhagen dinner service for twenty-four from the Kingdom of Denmark, a one-rupee note from a ten-year-old girl in Bombay and—a gesture that excited much speculation—a case of caviar from the Kremlin.

The Department of Defense announced that General O'Reilly had become the most decorated soldier ever to wear American uniform. In every toss, each of the rival sides had awarded him some kind of decoration. When he wore full-dress uniform, the ribbons solidly covered both sides of his tunic, and he was nearly strangled with various stars and orders that dangled from ribbons around his neck.

"He retired just in time," his wife told her daughter-in-law one day at tea. "There's not another square inch left for another ribbon."

General O'Reilly presented the Golden Judge to the United Nations, and the King of Saudi Arabia proved his sportsmanship by having a theft-proof case made for it of solid crystal, so that it could be on public display. It was soon

as visited and cherished as the Magna Carta and the Liberty Bell. A night and day guard stood watch over it.

Yet it was far from a useless relic. Often the crystal case was empty, and this meant it was seeing service somewhere in the world, in the hands of a Swedish general who had finally been chosen by the United Nations to succeed Terence O'Reilly.

In his final press interview, General O'Reilly unburdened himself of some thoughts which—refined—have passed into international jurisprudence under the name of O'Reilly's Law.

"For thousands of years," the general said thoughtfully, "mankind has been making all kinds of commandments and laws and prohibitions and contracts and treaties—and broken them all when the mood suited them. Perhaps it's a sad thing to say, but so far nothing's ever been invented that men will really live up to more than the terms of a bet. With very, very few exceptions, a man—or a nation—will respect a bet when he won't respect any other damned thing on earth!"

THE END

*** END OF THE PROJECT GUTENBERG EBOOK THE GOLDEN
JUDGE ***

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